

Terms of Use

Last updated: 19/07/2022

PLEASE READ THESE TERMS OF SERVICE CAREFULLY, INCLUDING OUR PRIVACY POLICY.

1. About These Terms Of Use

This Terms of Service (“**Terms**”) is a legally binding agreement between MoncheyPlanet Game(“MoncheyPlanet Game” “**we**” or “**us**”) and you (“you” or “User”). Please take the time to read them carefully. If you are under age 18, you may only use the Services with the consent of your parent or legal guardian. Please be sure your parent or legal guardian has reviewed and discussed these Terms with you.

By accessing or using our Services, you confirm that you can form a binding contract with MoncheyPlanet Game, that you agree to accept these Terms and that you agree to comply with the Terms, which we may update from time to time. Your access to and use of our Services is also subject to our [Privacy Policy](#) (which is a part of the Terms) and our [Cookie Policy](#) (which is incorporated into the [Privacy Policy](#)) which cover how we collect, use, share and store your personal data. By using the Services, you consent to the terms of the [Privacy Policy](#).

Our Apps download/purchase page may contain certain additional terms, conditions and requirements, which constitute a part of the Terms. In case you download/purchase the Apps through an online store such as Google Play Store, Apple App Store, etc. (“**Online Store**”), please, review the terms and conditions of the owner of that particular Online Store, which may provide for certain additional requirements applicable to the download of the Apps through that Online Store, its installation and use.

The Services may contain specific rules, controls and guidelines, which can be found within the Services themselves and which are related to the use of the Services. Such rules, controls and guidelines form a part of the Terms and you agree that you will comply with them.

If you do not agree to any term of this Terms, please do not, either directly or indirectly, use or access to the MoncheyPlanet Game Services in any way.

2. Changes And Severability

We amend these Terms from time to time. We reserve the right, at our discretion, to change, modify, add or remove portions of the Terms at any time by posting the amended Terms. If there is a material change, we will use commercially reasonable efforts to generally notify all users of any material changes to these Terms. We will also update the “Last Updated” date at the top of these Terms, which reflect the effective date of such Terms. Unless we state otherwise, the changes are effective immediately upon posting. Your continued access or use of the Services after the date of the new Terms constitutes your acceptance of the new Terms. If you do not agree to the new Terms, you must stop accessing or using the Services.

If any portion of the Terms is deemed to be illegal or unenforceable, the remainder of the Terms shall be unaffected and shall continue to be fully valid, binding, and enforceable.

3. Requirements To Use

We also reserve the right, in our sole discretion and at any time, to discontinue or modify our Services or any part thereof or remove or edit Content (as defined below), without prior notice either permanently or temporarily, at which point your right to use those Services or any part thereof will be automatically terminated or suspended.

The transmission of information over wireless and wired networks is not inherently secure. We use many tools to help to protect your personal data against unauthorized access or disclosure, however, we may not guarantee that your personal data or private communications will always remain private when using our Services. You accept all responsibility for such security risks and any damage that may result therefrom. It is also your sole responsibility to use all reasonable and recommended measures (such as complex passwords, etc.) in order to secure your device from any unauthorized access.

U.S. GOVERNMENT RESTRICTED RIGHTS: Our Services have been developed entirely at private expense and are provided as “Commercial Computer Software” or “restricted computer software”. Any use, duplication or disclosure by the U.S. Government or a U.S. Government subcontractor is subject to the restrictions set forth in subparagraph (c)(1)(ii) of the Rights in Technical Data and Computer Software clauses in DFARS 252.227-7013 or as set forth in subparagraph (c)(1) and (2) of the Commercial Computer Software Restricted Rights clauses at FAR 52.227-19, as applicable.

Any download of our Apps and use of our Services shall be in compliance with all relevant international, U.N., USA or EU sales, export or import restrictions and

regulations and you agree to comply with them. You represent and warrant that (i) you are not located in a country that is subject to U.S. Government embargo, or that has been designated by the U.S. Government as a „terrorist supporting” country; and (ii) you are not listed in any U.S. Government or EU sanction list of prohibited or restricted parties and you comply with relevant U.S. Government and EU sanctions and embargos; and (iii) you are solely responsible for compliance with all applicable laws, including without limitation export and import regulations, when using the Services.

4. Purchases In The Services

- In-app Purchases.

When you make in-app purchases ("Virtual Items"), the payment for such purchases may be processed either by third parties on our behalf, or directly by the owner of the Online Store. If you download the Apps from the Online Store owner, when you purchase Virtual Items in our game, MoncheyPlanet Game is not a party to the transaction and your purchase will be governed by the third-party platform's payment terms and conditions. Please review the platform's terms of service for additional information. Thus, if you have any payment related issues (including cancellation or refund requests), then you will need to contact the respective Online Store owner directly.

You understand that while you may “earn,” “buy,” or “purchase” Virtual Items in our Services, you do not legally “own” the Virtual Items and the amounts of any Virtual Item do not refer to any credit balance of real currency or its equivalent. Any “virtual currency” balance shown in your account does not constitute a real-world balance or reflect any stored value, but instead constitutes a measurement of the extent of your limited license.

Please note that you only purchase a limited, revocable, non-transferrable license for personal use of Virtual Items in the Services. Virtual Items are not “sold” to you. You agree that you do not own any Virtual Items that you obtained through the Services, regardless of whether you earned those Virtual Items or purchased them.

When making purchases in the Services, you agree that the digital content will be available to you immediately, and acknowledge that you will lose your rights to the 14 days cancellation period and refunds available for EU and EEA residents.

- Subscriptions

Some of MoncheyPlanet Game's Games may offer subscription-based Services. If you purchase a subscription, then by clicking the purchase button you are requesting that we begin supplying the subscription Services immediately and you are entering into a recurring subscription contract with MoncheyPlanet Game. You are also authorizing a charge to you on a recurring subscription fee at the rate quoted at the time of purchase. By purchasing a subscription, we will automatically charge on a recurring basis the payment method associated with your account. For subscription Services purchased in a MoncheyPlanet GameGame played on a platform such as Apple or Google, the applicable platform will charge you for the subscription fee and the platform's payment terms will apply. Please review the appropriate platform's payment terms for additional information.

Trial subscriptions are offered free of charge for a certain period of time from activation specified in the relevant trial offer in the Game. If you do not cancel the subscription within such trial period, the trial subscription will automatically convert into a paid subscription for the fees and for the subscription period set out in the Game at the time of the activation of the trial period. You may cancel a subscription during its free trial period using the subscription setting of your account.

Your subscription will automatically renew each subscription period unless and until you terminate your subscription or we terminate it. You must cancel your subscription before it renews, otherwise payment of the subscription fees for the next period will be taken automatically via your chosen payment method. In case the subscription fee cannot be taken from your account due to absence of monetary funds, invalidity of credit card or for any other reason, your subscription will be automatically cancelled.

Except where required by applicable law, paid subscription fees are non-refundable.

YOU ACKNOWLEDGE THAT MONCHEYPLANET GAME IS NOT REQUIRED TO PROVIDE A REFUND FOR ANY REASON, AND THAT YOU WILL NOT RECEIVE MONEY OR OTHER COMPENSATION FOR UNUSED VIRTUAL ITEMS WHEN AN ACCOUNT IS CLOSED, WHETHER SUCH CLOSURE WAS VOLUNTARY OR INVOLUNTARY, OR WHETHER YOU MADE A PAYMENT THROUGH OUR SITE OR ANOTHER PLATFORM SUCH AS APPLE, GOOGLE, FACEBOOK, OR ANY OTHER SITES OR PLATFORMS WHERE WE OFFER OUR SERVICES.

5. Ownership And License

MoncheyPlanet Gameshall own all rights, titles and interests (including but not limited to the ownership, intellectual property rights, neighboring rights and other

rights and interests) in and to the MoncheyPlanet GameServices under this Agreement. You acknowledge that your use of the MoncheyPlanet GameServices does not confer you any right or interest or otherwise, in any aspect or feature of it, your use of the MoncheyPlanet GameServices may cease to be available to you at any time without prior notice in the sole discretion of MoncheyPlanet Game.

Any or all of the MoncheyPlanet GameServices (including trade secrets, database rights, copyright, patent, trademark and other intellectual property rights and interests thereof) are copyrighted and protected by any applicable laws (including but not limited to any applicable copyright laws and international treaties).

MoncheyPlanet Gameremains the sole owner of rights, titles and interests (including intellectual property rights, neighboring rights and other rights and interests) in and to the MoncheyPlanet GameServices. You acknowledge and agree that you may not have any right or interest as a result of using the MoncheyPlanet GameServices, except explicitly granted to you under this Agreement.

6. User Generated Content

On certain areas of the Services or otherwise, you may be able to chat with other users, and submit texts, files, images, photos, videos, sounds, musical works, works of authorship, text postings and other materials and content (“**User Generated Content**” or “**UGC**”). Your posting of UGC is subject to the Terms and the following posting rules (“**Posting Rules**”):

- As a user, you are personally and solely responsible for all information posted and/or sent, transmitted, or provided to others by you in connection with our Services, including but not limited to User Content posted in forums, blogs, and player chat features. Please do not use these mediums to share or post information you wish to remain confidential.
- You represent, warrant, and affirm that your User Content is accurate, that it does not violate any applicable laws or rights of others, that you have the appropriate permissions or rights from any third parties whose information or intellectual property is comprised in the User Content, and that such User Content is free of malware, viruses, adware, spyware or any malicious code.
- You agree not to submit and/or transmit any User Content that is unlawful, tortious, defamatory, libelous, obscene, threatening, harassing, abusive, violent, hateful, racist, or otherwise objectionable or inappropriate. We do not assume any liability or responsibility for any user behavior or for monitoring User Content or conduct in connection with the Services.

YOU UNDERSTAND AND AGREE THAT MONCHEYPLANET GAMEMAY DELETE ALL UGC AT ANY TIME, AND WITHOUT NOTICE, IF MONCHEYPLANET GAMEDEEMS THAT YOU MATERIALLY BREACH THESE POSTING RULES, THE TERMS, APPLICABLE LAW, OR FOR ANY OTHER REASON. MONCHEYPLANET GAMEASSUMES NO LIABILITY FOR ANY INFORMATION REMOVED FROM OUR SERVICES AND RESERVES THE RIGHT TO PERMANENTLY RESTRICT ACCESS TO SERVICES.

7. Ownership And License Of UGC

After posting your UGC on or through the Services, you continue to retain all ownership rights in such UGC, and you continue to have the right to use your UGC in any way you choose, subject to the Terms and the license described herein (“UGC License”).

A. Scope Of License.

By displaying, publishing, or otherwise posting any UGC on or through the Services, you hereby grant to MoncheyPlanet Gamethe non-exclusive, irrevocable, worldwide, royalty free license to edit, adapt, publish, modify, reproduce, distribute, publicly display and use your UGC and any derivative works we may create from it, in any and all media (whether it exists now or in the future), for any purpose, in perpetuity, without any payment to you. To the extent allowed by applicable laws, you agree to waive any moral rights you may have in Feedback (e.g. the right to be identified as the author of Feedback or the right to object to a certain use of Feedback). Any UGC you submit on or through the Services will be considered non-confidential and non-proprietary. If you have any idea or information that you would like to keep confidential and/or do not want others to use, please refrain from posting it.

B. Representations.

You represent and warrant that: (i) you solely own the UGC displayed, published or posted by you on or through the Services or otherwise have the right to grant the license set forth herein, and (ii) the displaying, publishing or posting of your UGC does not violate infringe on the rights of any third party, including any copyright, trademark, patent, trade secret or other intellectual property right, or the privacy rights, publicity rights, contract rights or any other rights of any person. You agree to pay for all royalties, fees, and any other monies owing any person by reason of any UGC displayed, published or posted by you to the Services. Except for your UGC, you may not edit, adapt, publish, reproduce, distribute, publicly display and use any UGC appearing on the Services.

8. User Feedback

If you provide us with any suggestions for enhancement or feedback regarding the Services, you agree that we will have a perpetual, transferable, sub-licensable, royalty-free, irrevocable, worldwide license to use such suggestions and feedback, including by incorporating your suggestions or feedback in the Services, without any obligation to compensate you. To the extent permitted by applicable law, you waive any moral rights you may have in such suggestions and feedback.

9. Links to Third Party Websites or Resources

The Services may contain links to third-party websites or resources. We provide these links only as a convenience and are not responsible for the content, products or services on or available from those websites or resources or links displayed on such websites. Please review our <https://moncheyplanetgame.com/PrivacyPolicy-Merge.txt> which explains what information we share with advertisers. You acknowledge sole responsibility for and assume all risk arising from, your use of any third-party websites or resources.

10. Indemnification

If you violate the law or breach these Terms, and your violation or breach results in loss or damage or a claim or liability against us, you agree to indemnify, defend and hold us harmless from (which means you agree to compensate us for) that loss, damage, claim or liability, including our legal fees and expenses. We may take exclusive charge of the defense of any legal action for which you are required to indemnify us under this section, at your expense. You agree to cooperate in our defense of these actions. We will use reasonable efforts to notify you of any claim for which you are obligated to indemnify us. You agree not to settle any matter without the prior written consent of MoncheyPlanet Game.

11. Limitation of Liability

- You agree that your use of the MoncheyPlanet GameServices shall be at your own risk. MoncheyPlanet Gameprovides the MoncheyPlanet GameGame(s) and/or the MoncheyPlanet GameServices on an “AS IS” and “AS AVAILABLE” basis. To the fullest extent permitted by applicable laws, MoncheyPlanet Gameand/or its affiliates, employees, officers, managers, directors, agents, disclaim all warranties of any kind, including but not limited to any warranties of merchantability, error-free, non-infringement, or for a particular purpose, regardless of express or implied, regardless of in the aspect

of tort, contract or otherwise, and regardless of whether MoncheyPlanet Gamehas been advised of the possibility of such liabilities.

- **MONCHEYPLANET GAMEHEREBY DISCLAIMS ALL WARRANTIES, CONDITIONS, COMMON LAW DUTIES AND REPRESENTATIONS, EITHER EXPRESS, IMPLIED, ORAL OR WRITTEN.** MoncheyPlanet Gamemakes no warranties about the accuracy or completeness of the MoncheyPlanet GameServices. Also, MoncheyPlanet Gameassumes no liability or responsibility for: (i) any errors, mistakes, or inaccuracies of the MoncheyPlanet GameServices; (ii) personal injury, property damage, lost profits, loss of data or any indirect, special, incidental, exemplary, consequential or punitive damages arising from your use of the MoncheyPlanet GameServices; (iii) any interruption, suspension or termination of the MoncheyPlanet GameServices; (iv) any bugs, viruses or similar links transmitted by third-parties on or through the MoncheyPlanet GameServices; (v) any programs intended to damage, detrimentally interfere with, surreptitiously intercept or expropriate any personal information of you; and/or (vi) any damages arising from or in connection with unexpected circumstances or otherwise beyond our reasonable control.
- In no event shall MoncheyPlanet Gamebe liable to you or third-parties for any indirect, incidental, punitive, special, exemplary or consequential damages (including, without limitation, loss of business, revenue, profits, use, data, or other economic advantage), however it arises, whether for breach of contract or in tort, even if MoncheyPlanet Gamehas been advised of the likelihood of such damages occurring.
- MoncheyPlanet Gamehas no control over Third-party sites which you may have access, including those sites which are linked to our websites. Therefore, MoncheyPlanet Gameis not responsible for the content or function of any other websites, and disclaims any liability for any aspects of such Third-party websites via your direct access or through our websites or software functionality. The applicable service terms and privacy policies of those third-party websites shall govern your use of such websites.
- **THE MAXIMUM AGGREGATE, CUMULATIVE LIABILITY OF MONCHEYPLANET GAMEAND OUR MEMBERS, OFFICERS, EMPLOYEES, DIRECTORS, CONSULTANTS, AFFILIATES, WILL NOT EXCEED YOUR DIRECT DAMAGES, IF ANY, UP TO THE TOTAL FEES PAID BY YOU TO US DURING THE THREE (3) MONTHS PRIOR TO YOUR MAKING A CLAIM AGAINST MONCHEYPLANET GAME.** These limitations and exclusions regarding damages apply even if any remedy provided by us fails to provide adequate compensation.

12. Waiver Of Our Rights

Our failure to exercise or enforce any of our rights under the Terms does not waive our right to enforce such right. Any waiver of such rights shall only be effective if it is in writing and signed by us.

13. Terms, Termination And Survival

A. Term.

The term of this agreement commences on the date you first indicate your acceptance of the Terms and will continue in effect until otherwise terminated in accordance with the Terms. MoncheyPlanet Games reserves the right to suspend, discontinue, enhance, update or otherwise modify the Services (or any of its features or functionalities), or their availability to you, at any time without providing any prior notice.

B. Termination

- Without limiting any other rights of MoncheyPlanet Game, this Terms will terminate automatically without prior notice if you fail to comply with any term or condition of this Terms or any agreements or policies referred herein. You may also terminate this Terms by deleting the MoncheyPlanet GameGame(s) from all devices on which you've installed and immediately stop your uses of the MoncheyPlanet GameServices. Upon any termination, you shall no longer exercise any of the rights granted to you and you must destroy all copies of the MoncheyPlanet GameGame(s) in your possession.
- Despite the termination/expiration of this Agreement, your obligations accumulated prior to the termination/expiration shall still be fulfilled by you. Also, all the rights and interests of MoncheyPlanet Gameand the authorization (if any) granted to MoncheyPlanet Gameshall still remain in effect and survive the termination of this Agreement.

C. Survival Of Terms.

14. Governing Law

- The provisions of the Terms shall be governed by and construed in accordance with the laws of Hongkong.
- These Terms and any action related thereto will be governed by the laws of the State of California without regard to its choice of law or conflict of law principles. Further, you and we agree to the jurisdiction of the courts in Santa Clara County, California to resolve any dispute, claim, or controversy that

relates to or arises in connection with the Services (and any non-contractual disputes/claims relating to or arising in connection with them).

- SUBJECT TO APPLICABLE LAWS AND REGULATIONS, BOTH PARTIES CONFIRM THAT ANY DISPUTE RESOLUTION PROCEEDINGS, WHETHER IN ARBITRATION OR COURT, WILL BE CONDUCTED ONLY ON AN INDIVIDUAL BASIS AND NOT IN A CLASS OR REPRESENTATIVE ACTION.

15. Dispute Resolution

Most concerns can be solved quickly by contacting us at MoncheyGame@gmail.com. In the unlikely event that we cannot solve your concern and you wish to bring legal action against us, then that dispute will be subject to the jurisdiction of the courts of Hongkong.

16. Force Majeure

Neither you nor we will be liable for any failure to perform any obligation under the Terms or to provide access to Services if that failure is caused by the happening of any unforeseen event beyond your or our reasonable control, including without limitation, war, terrorism, riots, embargoes, Internet outages, network infrastructure failures, natural disasters, fire, flood or act of God.

17. Other Terms

A. Entire Agreement.

These Terms (including the [Privacy Policy](#) and [Cookie Policy](#)) constitute the whole legal agreement between you and MoncheyPlanet Game and govern your use of the Services and completely replace any prior agreements between you and MoncheyPlanet Game in relation to the Services.

B. Assignment And Novation.

We can assign, novate, subcontract or otherwise transfer the Terms to a third party or an affiliate of MoncheyPlanet Game if necessary for the support of our Services, as part of any reorganization, change of control, or for any other business reasons. You may not assign or transfer your rights or obligations under the Terms to anyone without first obtaining our written consent. Any attempt to assign without our consent is void.

C. Informal Process First.

You agree that in the event of any dispute between you and MoncheyPlanet Game, you will first contact MoncheyPlanet Game and make a good faith sustained effort to resolve the dispute before resorting to more formal means of resolution, including without limitation any court action.

D. No Beneficiaries.

A. The Terms governs the relationship between you and us and does not create any rights for anyone else. Notwithstanding the foregoing, in the event of a valid assignment or transfer, the Terms shall be binding on and inure to the benefit of the relevant party's representatives, successors, and permitted assigns.

E. No Right To Obligate The Other.

The Terms does not create a partnership, joint venture or similar relationship between the parties, and neither party will have the power to obligate the other party in any manner whatsoever.

F. Governing Language.

MoncheyPlanet Gamemay translate this Terms into other languages. If there is any difference between the English version and other language versions, then the English version, subject to applicable laws and regulations, shall prevail.

18. Contact Information.

If you have any questions about these Terms or Use, please contact us at MoncheyGame@gmail.com

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